

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ROMANIA

Complete Community Opposition How-To

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INTRODUCTION & FRAMEWORK

Why This Matters

Across Romania, communities discover that a place they depend on — an old-growth forest in the Carpathians, a river valley, a mountain, the land around a village — has been opened to something destructive. An open-pit mine. A quarry. A dam. A logging operation tearing through a Natura 2000 forest. A landfill or an incinerator. The first sign is often the machinery, the survey stakes, the trucks of timber leaving a protected forest, or a notice that a permit has been granted for a project no one in the community ever agreed to.

This guide is a practical manual for those communities. It explains how the approval system for large projects is supposed to work in Romania, where the genuine — and, thanks to European Union membership, unusually strong — openings are, what documentation actually matters, how to organise, and how to use the levers that have, here, achieved something remarkable. It does not promise victory. It offers a clear-eyed method that gives you the best possible chance while keeping you and your community as safe as circumstances allow.

Romania is, above all, a country of two truths, and you must hold both. The first is inspiring: **Romania is home to one of the greatest community environmental victories in modern Europe.** For twenty years the people of Roşia Montană, joined by Romanian civil society and, eventually, the state itself, fought a Canadian-British company's plan to build Europe's largest open-pit cyanide gold mine on their town. Through mass protest — the 2013 movement was among the largest since 1989 — through the courts, and through the environmental-permit process, they stopped it; the site became a UNESCO World Heritage Site in 2021; and in 2024 an international tribunal rejected the company's multi-billion-dollar compensation claim in full, finding Romania's environmental and heritage protections to be lawful. It is proof that in Romania a community can win.

The second truth is sobering: **in Romania's forests, destruction continues on a vast scale, entangled with corruption and, at its worst, with violence.** Romania holds more primary and old-growth forest than any EU country outside Scandinavia, and much of it — even inside protected Natura 2000 sites — has been logged illegally, so extensively that the European Commission has opened infringement proceedings against the Romanian state. Forest rangers and activists who stand in the way have been attacked, and some have been killed. Here the fight is harder, the institutions weaker, and the danger real.

Which of these Romanias you are facing shapes everything. But both share a decisive feature that most of the world's communities do not have: **Romania is a member state of the European Union**, bound by EU environmental law that

its own government cannot simply override, and answerable to the European Commission and the Court of Justice of the European Union. That is the single most powerful fact in this guide.

The Strategic Framework

The core idea is simple: **a destructive project is not a single event but a chain of decisions and dependencies, and a chain can be broken at its weakest link.** A project needs a valid environmental permit; it needs to survive the EU nature and impact rules; it needs its logging or its concession to be lawful; it needs the acquiescence of a public that, in Romania, has shown it will not always give it; and it needs to avoid the scrutiny of Brussels, the courts, the press, and the anti-corruption bodies. Each of these is a potential point of leverage.

Your task is to find the link you can reach. Sometimes it is the environmental permit and the EIA. Sometimes it is the Natura 2000 status and the Habitats Directive — the ground on which the European Commission is already pursuing Romania. Sometimes it is the timber-traceability system and the Forest Guard. Sometimes it is a court, an anti-corruption prosecutor, or the European Commission itself. And sometimes — as at Roşia Montană — it is the sheer, sustained, disciplined weight of a mobilised public.

Critical Caveat: Which Situation Are You In?

Throughout this guide you will find honest assessments, because a guide that promised any project can be stopped by filing the right objection would be lying.

Where the project is an ordinary one within a functioning process — a mine, quarry, dam, landfill, or development that needs a permit you can challenge — Romania's EU-anchored system gives you real and powerful tools, and the Roşia Montană precedent shows how far they can reach.

Where the harm is illegal logging entangled with organised crime and corruption, the fight is different and more dangerous — the formal levers still matter (EU law above all), but so do safety, the anti-corruption bodies, and international pressure, and you must never place yourself alone in front of the people who profit from the forest.

Knowing which situation you are in — and what danger it carries — is among the most important judgments you will make. Much of this guide is designed to help you judge accurately.

How to use this guide

Read the whole thing once before acting, and read the organising, tilted-system, and corruption sections with particular care, because in Romania the EU dimension and, in the forests, the question of safety shape everything. Two principles run throughout. First, **use the European lever:** because Romania is bound by EU environmental law and watched by the European Commission and the Court of Justice, your strongest moves are almost always the ones that engage those obligations, which a Romanian authority cannot simply set aside. Second, **combine the strands:** documentation, EU and domestic legal action, organising, media, and — where it fits — mass mobilisation and international solidarity work far better together than any one alone. That combination is how Roşia Montană was won.

HOW THE SYSTEM WORKS

You cannot pressure a chain you cannot see. This section maps the bodies that decide, the journey a project takes, the rules that matter — Romanian and, crucially, European — the incentives that drive decisions, and the overseers who can hold the system to account.

The Bodies That Decide

The environmental protection agencies (APM and ANPM). Environmental permitting runs through the county Environmental Protection Agencies (Agenţia pentru Protecţia Mediului, APM) and the National Agency (ANPM). They conduct the environmental-impact assessment (EIA) procedure and issue — or refuse — the environmental agreement (acordul de mediu) and environmental permit (autorizaţia de mediu) a project needs. These agencies are your first and most important formal arena: the permit is the document the whole project rests on.

The environmental ministry. Sets policy and oversees the agencies. In the forestry crisis it has been sharply criticised — including by the European Commission and by Romanian NGOs — for failing to halt illegal logging. Treat it as a body to petition and to hold accountable, not to rely on.

The Forest Guard (Garda Forestieră) and the forestry authorities. The Forest Guard is the state body responsible for controlling logging and enforcing forestry law. Its performance has been uneven and, in places, compromised — but it is the authority to which illegal logging is reported, and the timber-tracking tools it oversees are real levers.

Local authorities — the county council and the mayor (primar). Local government issues planning and building approvals, adopts the urban and territorial plans (PUG/PUZ) that decide what may be built where, and often stands to gain from investment. Watch the plans closely; a quiet change to a local plan is frequently the first step of a destructive project.

The courts. Romania's administrative courts (contencios administrativ) hear challenges to permits and decisions, and its civil and criminal courts handle related matters. Judicial independence has improved but remains contested, and cases can be slow. Still, the courts are a genuine arena — and, backed by EU law, a powerful one.

The anti-corruption and prosecuting bodies (DNA and the prosecutors). Romania's National Anticorruption Directorate (DNA) and its prosecutors have, at times, pursued high-level environmental and land corruption. Where genuine corruption underlies a project, these are the bodies to inform.

The European Union institutions. This is what sets Romania apart. The **European Commission** enforces EU environmental law against Romania and has opened infringement proceedings over illegal logging in Natura 2000 sites and over the EU Timber Regulation. The **Court of Justice of the European Union (CJEU)** can ultimately rule against Romania and impose penalties. These are not domestic bodies a local mayor can influence, and they are central to your strategy.

How a Decision Is Actually Made — The Journey of a Project

Stage 1 — Plans and siting. A project appears in a local or county plan (PUG/PUZ), a forest management plan, or a concession. Changes to these plans, often little-noticed, are where a project first becomes possible.

Stage 2 — The environmental procedure. Most significant projects require screening and, if likely to have significant effects, a full EIA and an appropriate assessment where a Natura 2000 site is affected. The APM runs this, with public consultation, and issues or refuses the environmental agreement. This is the decisive formal stage — the stage at which Roșia Montană was ultimately blocked.

Stage 3 — Permits and authorisations. Building permits, water permits, forestry approvals, and the operating environmental permit follow. Each is a document with conditions — and each is a potential point of challenge.

Stage 4 — Construction or extraction. Works begin. For logging, this is where the timber-traceability system (SUMAL) and the public "Inspectorul Pădurii" tool matter, letting anyone check whether a timber transport is authorised.

Stage 5 — Operation and harm. Pollution, deforestation, habitat loss, and their effects on people follow — the toll that documentation must capture and that enforcement, if it works, must address.

The Rulebook — The Provisions That Matter

You need not be a lawyer, but you must know the handful of instruments that give your case its force. In Romania the European ones are often the strongest:

- **EU environmental law**, which binds Romania directly: the **Environmental Impact Assessment (EIA) Directive**; the **Habitats and Birds Directives** and the **Natura 2000** network they create; the **Water Framework Directive**; and the **EU Deforestation Regulation / former EU Timber Regulation** governing illegal timber. A breach of these is enforceable by the European Commission and the CJEU.
- **The Aarhus Convention**, binding on Romania and the EU, guaranteeing access to environmental information, public participation, and access to justice.
- **Romanian environmental law** — the EIA framework (Law 292/2018 on environmental impact assessment) and the emergency ordinance on environmental protection (OUG 195/2005) — which implement the EU rules domestically and set out the permit, the consultation, and the challenge.
- **Romanian forestry law** — the Forest Code and the timber-traceability system (SUMAL) — governing what logging is lawful.
- **Heritage and protected-area law**, under which sites like Roșia Montană gain protection.

The pattern to hold in mind: Romanian authorities may lean toward a project, but **EU environmental law is a ceiling they cannot lawfully breach**, and the European Commission and CJEU exist precisely to enforce it. That is your firmest ground.

Follow the Money — Why Projects Proceed

Understand the incentives and you understand the pressure. Local authorities want investment, jobs, and revenue. In forestry, illegal logging is lucrative and, the evidence shows, has been protected by corruption reaching into the institutions meant to stop it. Developers and loggers profit; the environmental and human cost falls on communities and on Europe's shared natural heritage. There is not always a neutral referee to persuade domestically. That is why the European lever matters so much: the European Commission and the CJEU are referees the local beneficiaries cannot capture.

The Overseers — Who Can Hold the System to Account

- **The European Commission**, which receives complaints from anyone and can open and escalate infringement proceedings against Romania — already doing so over the forests.
- **The Court of Justice of the European Union**, the ultimate enforcer of EU environmental law.
- **The Romanian administrative courts**, which review permits and decisions, applying EU law.
- **The DNA and prosecutors**, for genuine corruption.
- **The Ombudsman (Avocatul Poporului)**, for maladministration and rights.
- **International and Romanian NGOs** — Agent Green, Greenpeace Romania, Alburnus Maior, ClientEarth, EuroNatur and others — who investigate, litigate, and carry cases to Brussels.

These are the overseers your strategy must reach. Much of the rest of this guide is about building a case strong enough to move them — above all the European ones.

Catch It Early: Watch the Plans

The cheapest fight to win is the one you catch before it starts, and in Romania that means watching the local and county plans. A destructive project rarely announces itself; it begins as a quiet line in a general urban plan (PUG) or a zonal plan (PUZ) — a reclassification of forest or farmland, a new "development" zone, a change that makes a mine or a quarry or an estate suddenly permissible. By the time the machinery arrives, that enabling decision is often months or years old and harder to undo. So make it someone's job to watch: the municipal and county council agendas, the public notices, the plan consultations. A plan change is itself consultable and, if unlawful, challengeable — and objecting at that stage, before money and momentum have gathered behind the project, is far easier than fighting a permit later. If you learn to read the plans, you buy your community the most valuable thing in any of these fights: time, and the early warning that lets you organise before the decision is made rather than after.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns from how Romanian and comparable EU campaigns tend to go, not a controlled study. The decisive variable is not in the table: **whether you are facing an ordinary project within a functioning permit process, or illegal logging entangled with corruption and, sometimes, violence**. For the first, Romania's EU-anchored tools are strong; for the second, discount the domestic figures, lean hardest on the European lever and the anti-corruption bodies, and put safety first.

Individual Step Success Rates

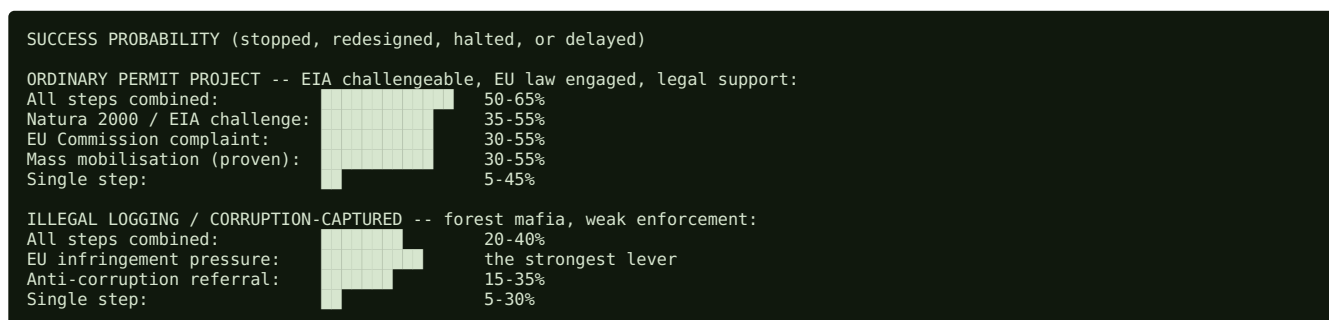
Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Public participation in the EIA	25-45%	during review	low	On record; conditions or a redo
Environmental-permit / EIA challenge (administrative court)	30-50%	6-30 months	moderate	Permit annulled; process redone; delay
Natura 2000 / appropriate-assessment challenge	35-55%	6-30 months	moderate	Consent quashed on Habitats-Directive grounds
European Commission complaint (EU infringement)	30-55%	12-48 months	low	Scrutiny of the state; pressure; leverage
Forest Guard / SUMAL illegal-logging enforcement	20-40%	1-12 months	low	Logging halted; sanctions; a record
Anti-corruption referral (DNA / prosecutors)	15-35%	12-48	low	Investigation; the project's protection

		months		removed
Mass, disciplined public mobilisation	30-55%	6-36 months	low	Political retreat (the Roșia Montană route)
All steps combined (ordinary permit project)	50-65%	12-36 months	low-moderate	Stopped, redesigned, or delayed
All steps combined (illegal logging / captured)	20-40%	12-48 months	low-moderate	Halted, exposed, delayed; EU pressure applied

Key insight: all steps together beat any single one, and Romania's real strengths are unusual — **binding EU environmental law** (EIA, Habitats/Natura 2000, Water Framework) that the state cannot override; the **European Commission and CJEU** as referees local interests cannot capture; **functioning-if-slow administrative courts**; the **timber-traceability tools**; and, above all, a **proven capacity for mass mobilisation to win**, as Roșia Montană showed. Its constraints are **corruption, especially in forestry, uneven enforcement**, and **real danger to forest defenders**.

A note on cost: participating, documenting, and complaining to the European Commission are inexpensive. The expenditure that changes outcomes is an environmental lawyer experienced in EU and administrative law — often available through Romania's environmental-law NGOs (Agent Green, Greenpeace Romania) and European partners (ClientEarth).

Effectiveness Visualization



How to read this honestly. The arguments that move outcomes in Romania are **legal and EU-anchored, reinforced by mobilisation and scrutiny** — a defective EIA, a Natura 2000 breach, an unlawful timber operation, a captured decision — carried to the administrative courts and, decisively, to the European Commission. Roșia Montană shows the ceiling: a community, the courts, the permit process, and a mass movement together not only stopped Europe's largest gold mine but held firm when the company sought billions in compensation — and won. The forests show the floor: where corruption and violence run deep, the domestic system falters, and the European lever and the anti-corruption bodies carry the most weight.

Step Importance Ranking (When All Combined)

1. **EU environmental law and the European Commission** — the EIA, Habitats/Natura 2000, and Water Framework obligations, and the complaint to Brussels that a captured domestic system cannot deflect.
2. **The administrative courts** — the permit and appropriate-assessment challenge, applying EU law at home.
3. **Mass, disciplined public mobilisation** — proven in Romania to force even a flagship project's retreat.
4. **Documentation and the enforcement tools** — the record, and, for logging, SUMAL and the Forest Guard.
5. **Media, NGOs, and the anti-corruption bodies** — the scrutiny that raises the cost and removes a project's protection.

What Romanian Campaigns Actually Show

A few patterns recur. **Mass mobilisation has genuinely won** — the Save Roșia Montană movement, among the largest since 1989, combined with litigation and the environmental-permit refusal to stop Europe's largest gold mine, secure UNESCO status, and defeat the company's multi-billion arbitration claim. **The EU lever is decisive** — the European Commission's infringement proceedings over illegal logging in Natura 2000 sites show that Brussels reaches where Bucharest will not, and a well-documented breach of the EIA or Habitats Directive is your firmest ground. **Procedure and the courts bite** — the environmental permit and the appropriate assessment are real, challengeable stages. **The forests reveal the danger** — corruption and violence make that fight harder, and safety and international pressure become paramount. **And documentation underpins everything** — the tribunal, the court, and the Commission all act on

evidence. The through-line: **build the EU-law case, take it to the administrative courts and the European Commission, organise broadly, and — where you can — mobilise the public, as Roşia Montană did.**

STEP 1: TARGET IDENTIFICATION

Before you gather a neighbour or write a word, you must know exactly what you are facing, who decides, where the chain is weakest, and what danger the fight carries. Acting before you know these things wastes effort. Spend your first days answering five questions.

The Five Questions

1. What exactly is the project, and is it an ordinary permitted project or illegal activity? A mine, quarry, dam, landfill, or development moving through the permit process is one thing; illegal logging in a protected forest is another. The first you fight through the EIA, the courts, and the public; the second through enforcement, the anti-corruption bodies, EU pressure, and — carefully — documentation, with safety foremost.

2. Does it require an environmental permit, and where is it in the process? Has an EIA been screened or required? Has the environmental agreement been issued, or is the public-consultation stage still open? The permit is the spine of the project; knowing exactly where it stands tells you whether you are objecting, challenging, or enforcing.

3. Does it affect a Natura 2000 site or protected area? This is often the strongest question in Romania. A project affecting a Natura 2000 site triggers the Habitats Directive's strict "appropriate assessment," and illegal logging in such sites is precisely what the European Commission is pursuing. If a protected site or old-growth forest is engaged, EU law is directly in play.

4. Who decides, and who benefits? Which APM issues the permit? Which local plan enabled it? Who profits — a company, a local authority, a logging network — and is there any sign of corruption? Map the decision-makers and the beneficiaries; it tells you which lever, and whether the anti-corruption bodies belong in your plan.

5. What is the danger, and what protection is possible? In the ordinary permit world, Romania is a functioning democracy and organising is safe. In the forests, it is not always so: rangers and activists have been attacked and killed. Judge honestly whether the interests behind your project are the violent kind, and if so, build in safety, never document alone in the forest, and connect early to national and international allies.

Reading the Answers

Work the five questions together and a picture forms. **An ordinary project affecting a Natura 2000 site, still in the permit process** points toward the EIA, the appropriate-assessment challenge, the courts, and a European Commission complaint — the strongest configuration in Romania. **Illegal logging in a protected forest** points toward SUMAL and the Forest Guard, the anti-corruption bodies, EU infringement pressure, and safe documentation with international partners. **A project driven by a local authority through a plan change** points toward the plan itself, the courts, and public mobilisation. **In every case**, the EU lever is available and usually decisive, and mobilisation — the Roşia Montană lesson — can transform a fight.

Naming Your Realistic Goal

Before going further, decide with a small, trusted group what winning would mean — concretely and honestly. Depending on your situation, a realistic goal might be: refusal or annulment of the environmental permit; a Natura 2000 breach found and the project quashed; illegal logging halted and sanctioned; a European Commission finding against the state; a corrupt approval investigated and undone; delay and redesign that make a project uneconomic; or, as at Roşia Montană, a mobilised public and a firm state that together end the project for good. Outright stopping a lawful, well-run project is hard; but Romania's tools — and its history — show that stopping, quashing, and forcing retreat are all genuinely possible. A goal that fits your situation, anchored in EU law and, where you can build it, in public mobilisation, is the responsible one — and it is the path by which Romania's greatest environmental victory was won.

STEP 2: DOCUMENTATION

Documentation is the foundation of everything that follows. In Romania — where the courts, the European Commission, and, at Roşia Montană, an international tribunal all act on evidence — the campaign is won or lost on whether you can

show, in dated, sourced, organised form, exactly what is happening, what rule it breaks, and what harm it does. A community that can prove a defective EIA, a Natura 2000 breach, or an unlawful timber operation holds the instrument that moves the strongest overseers. A community with only anger has far less.

The Mindset: Build a Record for a Court and for Brussels

Approach documentation as if you are assembling a file that an administrative-court judge and a European Commission case-handler will read — people who act on concrete, provable facts tied to specific legal obligations. Everything must be dated, attributed to a source, and stored securely in more than one place, including with trusted allies. Frame it around the rules from Section 2: the EIA, the Habitats Directive and Natura 2000, the Water Framework Directive, the Timber Regulation, and the domestic permit. Evidence tied to an EU obligation is the most powerful evidence you can gather.

What to Document

The project and its permit. What is proposed, by whom, and exactly where it stands in the environmental procedure — screening, EIA, the environmental agreement, the operating permit. Obtain the documents; the gaps and defects in them are often your case.

The environmental and Natura 2000 impact. The habitats and species affected, the Natura 2000 boundaries, and whether an appropriate assessment was done and done honestly. For forests, document the old-growth character (the PRIMOFARO inventory and similar sources map Romania's primary forests) and any overlap with protected sites — the heart of the European case.

The harm and the illegality. Deforestation, pollution, water impacts, habitat destruction — captured with dates and locations. For logging, whether the operation is authorised at all: the timber-traceability system (SUMAL) and the public "Inspectorul Pădurii" tool let you check whether a transport or a cut is legal.

The procedure. Whether the public consultation was genuine, whether the EIA addressed what the law requires, whether deadlines and publicity rules were met. Procedural defects are among the most reliable grounds in the administrative courts.

The decision chain and any corruption. The local plan (PUG/PUZ) changes, the approvals, the beneficiaries, and — documented only from solid sources — any sign of the corruption that, in forestry especially, has protected illegal activity.

The record of threats. Where the fight touches the violent end of the forestry world, document, carefully and safely, any threats or intimidation — the basis for protection and for exposing what defenders face.

How to Document Safely and Credibly

Record dates and sources for everything; prefer official documents, imagery, and verifiable data over rumour; and be accurate and restrained, because a file that overstates can be dismissed and, in a defamation-prone environment, can expose you. Use satellite and remote imagery — freely available tools and platforms such as Global Forest Watch document deforestation without anyone entering danger, and this should be a first resort in the forests. **On safety: in the ordinary permit world Romania is safe to organise in; in the illegal-logging world it is not always so — never go alone into a contested forest, tell others where you are, and work with experienced NGOs who have the methods and the networks.** Partner early with Romania's environmental-law organisations and their European allies: they bring the legal framing, the investigative capacity, and the channels to the courts and the European Commission, and they can carry the riskiest documentation so your community need not stand exposed.

Reading a Romanian EIA for Its Weak Points

When you obtain the environmental-impact assessment, read it like an opponent looking for the seams, because that is where your case lives. A handful of weaknesses recur. **The appropriate assessment** — where a Natura 2000 site is affected — is the first thing to test: was one done at all, did it honestly assess the effect on the site's protected habitats and species, or does it wave the impact away? A missing or superficial appropriate assessment is among the strongest grounds you can have, and it is the ground the European Commission is pursuing across Romania's forests. **The baseline** is the second: does the study actually survey what is there — the old-growth character, the bears and wolves and black storks, the water body — or does it assume it away? A study that never looked cannot honestly conclude "no significant effect." **The alternatives and the cumulative effects** are the third: has it considered doing less, or nothing, and has it added this project to the others already burdening the same forest or river? **The consultation** is the fourth: was the public genuinely informed and heard, within the proper time and with the documents available, or was the process a formality? And **the conclusions** are the last: do they follow from the study's own data, or do they leap past it to the

answer the developer wanted? Each weakness is both an objection to lodge and a ground to litigate — and, where it breaches an EU directive, a line in your complaint to Brussels.

WHAT TO GATHER, AND WHERE TO FIND IT

This section turns documentation into a concrete list of sources. Much of Romania's environmental record is public, and the EU dimension adds powerful sources a captured domestic body cannot suppress. Work through these carefully.

The Official and Legal Record

The environmental procedure file. The APM (county environmental agency) and ANPM publish EIA documentation, the environmental agreement, and the public-consultation notices; request the full file, including the impact study and any appropriate assessment. The defects in these documents are frequently the case.

The local and territorial plans. The county council and the municipality hold the PUG/PUZ urban plans; a quiet change is often the project's first enabling step, and the plan itself can be challenged.

The permits and authorisations. The building, water, and forestry approvals and the operating environmental permit — each with conditions you can hold the project to.

Environmental-information requests. Under the Aarhus-based right of access to environmental information (and the domestic access-to-information law, Law 544/2001), you can compel disclosure of the studies, approvals, monitoring data, and correspondence — and a refusal is itself challengeable.

The Forest and Nature Sources

SUMAL and Inspectorul Pădurii. Romania's timber-traceability system and its public app let anyone check whether a timber transport or operation is authorised — a uniquely direct tool for documenting illegal logging.

Natura 2000 and old-growth inventories. The Natura 2000 boundaries, the standard data forms for each site, and old-growth inventories such as PRIMOFARO establish what is protected and what is being lost.

Satellite and forest-monitoring data. Global Forest Watch and satellite imagery document deforestation over time, safely and verifiably — the evidence that underpinned the complaints to the European Commission.

The Corruption and Company Record

Company and ownership records. The Trade Register (ONRC) shows who owns and directs a company; cross-border tools (OpenCorporates) trace parents and links. Public-procurement and land records reveal contracts and transfers.

The anti-corruption record. DNA cases and investigative journalism (outlets such as Recorder and RISE Project) document the corruption that has, in forestry, protected illegal activity.

The Organisations and Channels That Carry the Case

- **Romanian environmental-law NGOs** — Agent Green, Greenpeace Romania, Alburnus Maior, Bankwatch Romania — who investigate, litigate, and complain to Brussels.
- **European partners** — ClientEarth, EuroNatur, CEE Bankwatch, ECCHR — who bring EU-law expertise and carry cases to the European Commission and beyond.
- **The European Commission's environmental complaint channel**, open to anyone, and the **Aarhus Convention Compliance Committee**.
- **Investigative journalists**, Romanian and international, who have made these fights visible.

Turning Sources into a Case

As you gather, sort everything against the chain from Section 2 — the plan, the EIA, the permit, the Natura 2000 status, the operation, the harm — so each piece attaches to the point and the legal obligation it proves, and keep a separate, secure file of any threats. By the end you should be able to show, with dated and sourced evidence, what is happening, what EU and Romanian rule it breaks, and at what cost — the record that moves the administrative courts and the European Commission, and that, at Roşia Montană, moved an international tribunal.

Researchers for Hire, and Everyday Research Tools

If digging through corporate filings, agency files and environmental records is beyond a few volunteers, you can hire it out — and this lifts a real weight off novice activists. The field is **opposition research** (or, on the labour side, **corporate-campaign research** — the same methods unions use to expose an employer's finances and record, turned on a developer). For your side, seek **opposition-research firms**, **licensed private investigators** with paid records access, **investigative journalists and freelancers** (often the cheapest, and they publish what they find), **environmental-compliance auditors** to dissect a developer's regulatory record, and **public-records / freedom-of-information specialists** to pry files loose. The investigative tools they use — and that a determined activist can use directly — include **OpenCorporates** and **OCCRP Aleph** (company ownership and cross-border links, worldwide) and **DocumentCloud** (search and OCR large document dumps), with **SEC EDGAR**, **LittleSis** and **MuckRock** as United States examples; most countries have their own equivalents.

For everyday, subject-agnostic research, a small kit goes far: **AI assistants** — Claude.ai, ChatGPT, Google Gemini, and Perplexity for sourced answers — are excellent for explaining a law, summarising a document, or drafting, so long as you **always verify** what they tell you, because they can invent citations; **Google Scholar** and Google's advanced search operators for studies and buried files; and the **Wayback Machine** for pages a developer or agency has quietly deleted.

Making the European Complaint Count

The complaint to the European Commission is Romania's firmest lever, so it is worth making well. It is free, open to anyone, and requires no lawyer — but a strong complaint does several things a weak one does not. It names the **specific EU directive** breached — the EIA Directive, the Habitats or Birds Directive, the Water Framework Directive, or the timber rules — rather than complaining in general terms. It **evidences the breach** with dated documents, imagery, maps, and, for forests, SUMAL and inventory data, so the case-handler can see it is real. It shows that the **domestic route has been tried and has failed or is inadequate** — an objection lodged, a permit challenged, an enforcement report ignored — because the Commission expects that. And it **connects to the existing case**: where your breach fits the pattern the Commission is already pursuing (illegal logging in Natura 2000 sites, defective assessments), say so, because it strengthens an open front rather than opening a lonely new one. Route the complaint through, or alongside, an experienced NGO — Agent Green, ClientEarth, EuroNatur — which knows how the Commission works and can carry it. A single well-made complaint will not, by itself, stop a project overnight; the infringement process is slow. But it puts the weight of Europe behind your case, reaches past any local capture, and — as Romania's forest campaigners have shown — can move the state where nothing domestic will.

STEP 3: BUILDING LOCAL OPPOSITION

Documentation gives you a case; organisation gives it weight. Romania offers a rare and inspiring proof of what organised opposition can achieve — and also, in the forests, a reminder that organising must sometimes be done with care for safety. This section is about building resistance that is broad, disciplined, EU-anchored, and, where the fight is dangerous, protected.

Start With a Small, Trusted Core

Begin with a handful of committed people who share the load and can act without drama. Agree early on what you are trying to achieve, who does what, and — crucially in Romania — whether the fight is an ordinary one (safe to organise openly) or touches the violent end of the forestry world (where a security plan, made with experienced NGOs, comes first). Assume, in the harder cases, that the interests you oppose may push back.

Widen Into a Broad, Disciplined Coalition

The Roşia Montană victory was built by widening a local fight into a national movement while keeping it disciplined and lawful. Aim for the same shape. **Local residents** are the moral core. **National environmental NGOs** — Agent Green, Greenpeace Romania, Alburnus Maior, Bankwatch Romania — bring investigation, litigation, and the crucial channel to the European Commission. **European partners** such as ClientEarth and EuroNatur bring EU-law firepower. **Scientists and foresters** supply the evidence. **Students, artists, and the diaspora** gave Roşia Montană its extraordinary reach and cultural power. **Sympathetic journalists** carry it to the country. Breadth is not decoration; it is what turned a village fight into a force the state could not ignore.

The Distinctive Romanian Lever: Mass, Disciplined Mobilisation

Romania has shown, more than most countries, that sustained, peaceful, disciplined mass mobilisation can force a government to retreat. The 2013 Save Roşia Montană protests, filling city squares across the country, made the mine politically impossible and reshaped the debate. This is a genuine and proven lever — but it works because it stays peaceful, disciplined, broad, and anchored in a concrete, lawful demand. If your fight can reach that scale, it can move the politics that the courts and the permit process then confirm.

Choose Tactics That Fit — and Stay Safe

Romania's repertoire is wide in the ordinary case: public participation in the EIA, petitions, lawful demonstrations, coalition-building, media, litigation, and the European complaint, used together. In the forestry case, weight the effort toward the safer and the external — documentation from a distance, SUMAL checks, the anti-corruption bodies, EU pressure, and international NGOs — and away from direct confrontation with those who profit from illegal logging. Whatever the mix, keep it lawful and disciplined (a single reckless act hands your opponents the story), keep it broad, protect the most exposed, and never let anyone — a documenter, a ranger, a witness — stand alone in a dangerous place.

Guard against burnout and division over what can be a long fight, by sharing the load, celebrating milestones, and holding to the knowledge that in Romania these fights have been won. Endurance, breadth, discipline, and the European lever are how Romanian communities have prevailed — and, at Roşia Montană, made history.

Hiring Help to Run the Campaign

You need not carry the whole campaign yourselves. A whole industry runs opposition campaigns for hire — the visible turnout at hearings, the public comment, the messaging and the media — known as **grassroots-for-hire** or **public-affairs / grassroots-advocacy** consulting. It usually serves whoever pays, most often the deep-pocketed side, but you can hire the same muscle for yours: **public-interest communications and PR firms, campaign and field-organising firms** that run turnout and canvassing, and, if the fight becomes a local vote, **ballot-measure consultants**. People outside that niche can carry a piece too — a **PR or crisis-communications firm, a campaign consultant, a digital-advocacy shop**, or a seasoned **community organiser** — taking weight off exhausted volunteers who feel they are carrying the opposition alone. Two rules hold. Hire them **transparently**, and never let anyone fake a grassroots front: that is *astroturfing* — dishonest, and ruinous if exposed; the aim is to amplify a real community, not fabricate one. And mind your **setting** — where public campaigning is repressed or dangerous this market may be absent and a visible "show" perilous, so favour trusted journalists and international allies over hired campaigners, and never let paid help expose your people.

STEP 4: LEGAL CHALLENGES

Legal action in Romania is a genuine and powerful lever, and its distinctive strength is that it runs on two tracks at once — the domestic administrative courts and the European Union. This section explains the openings. It is not a substitute for a lawyer, and finding one experienced in EU and administrative environmental law — often through Romania's environmental NGOs or European partners — is an early and vital task.

The Domestic Openings

Challenging the environmental agreement / permit and the EIA. The core domestic route: a challenge in the administrative court (contencios administrativ) to the environmental agreement or permit, on the ground that the EIA was inadequate, the public consultation defective, or the legal requirements unmet. This is the route that, with the movement and the permit refusal, stopped Roşia Montană. Object first during the consultation to preserve your position, then litigate.

The Natura 2000 / appropriate-assessment challenge. Where a project affects a Natura 2000 site, the Habitats Directive requires a strict "appropriate assessment," and a consent granted without a proper one is vulnerable. This is among the strongest grounds in Romania, and the one on which the European Commission is pursuing the state over its forests.

Challenging the plan. The local or county plan (PUG/PUZ) that enabled the project can itself be challenged where it was adopted unlawfully.

Forestry and enforcement actions. Reports to the Forest Guard, complaints built on SUMAL evidence, and, where genuine corruption is involved, referrals to the DNA and prosecutors.

The European Track — Romania's Firmest Ground

The complaint to the European Commission. Anyone can complain to the Commission that Romania is breaching EU environmental law — the EIA, Habitats, Birds, Water Framework Directives, or the timber rules. The Commission can open **infringement proceedings** and ultimately refer the state to the **Court of Justice of the European Union**, which can impose penalties. This is exactly what is happening over Romania's forests, and it is a lever no local authority or captured domestic body can neutralise.

Aarhus access to justice. The Aarhus Convention guarantees the public and environmental NGOs access to the courts in environmental matters, and its Compliance Committee can be petitioned where access is denied.

Preliminary references. A Romanian court can — and sometimes must — refer a question of EU law to the CJEU, whose ruling binds the outcome.

Standing, Deadlines, and a Word on Compensation

Three points. First, **standing**: affected individuals and, importantly, environmental NGOs have broad standing in Romanian environmental matters, so let an NGO carry the case where it can. Second, **deadlines**: administrative challenges have short time limits, so act quickly and get advice at once. Third — a distinctively Romanian lesson — **do not be deterred by the threat of investor arbitration**: when Gabriel Resources sued Romania for \$4.4 billion after the state refused the Roşia Montană permit, the international tribunal ruled for Romania in 2024, finding its environmental and heritage decisions to be lawful sovereign acts. A state that acts lawfully and in good faith on genuine environmental grounds can defend its decisions.

What Legal Action Realistically Achieves

Be clear-eyed. Domestic litigation can annul a permit, quash a consent on Natura 2000 grounds, strike down an unlawful plan, and force delay and redesign. The European track can bring the weight of the Commission and the CJEU against the state itself, reaching where domestic capture blocks. Combined with documentation, organisation, media, and — where you can build it — mass mobilisation, legal action on both tracks is the substantive path in Romania. Treat the administrative courts and the European Commission as your two strongest arenas, run them together, and remember that this is the country where a community's legal and political fight defeated Europe's largest gold mine and the arbitration that followed.

The Białowieża Precedent — Why the CJEU Matters Here

One European ruling towers over Romania's forest fights, and you should know it. In 2018 the Court of Justice of the European Union ruled against Poland over large-scale logging in the Białowieża old-growth forest, a Natura 2000 site, holding that it breached the Habitats and Birds Directives — and Poland was forced to stop. Romania's forest campaigners have invoked that precedent directly, precisely because it establishes that the EU's highest court will halt illegal logging in a protected primeval forest and bind a member state to its nature obligations. For a Romanian community, this is more than an analogy: it is the reason a well-documented Natura 2000 breach, carried to the European Commission and, ultimately, toward the CJEU, is such firm ground. The Commission's infringement proceedings over Romania's forests build on exactly this line. When you frame your case, frame it as Białowieża framed Poland's: a specific, evidenced breach of binding EU nature law that a European court has already shown it will enforce. That is the argument the local tilt cannot answer.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades an administrative-court judge, a European Commission case-handler, a journalist, a mayor, and the public in different ways. Learning to translate your evidence for each is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that logging is under way inside a Natura 2000 site without a proper appropriate assessment. That one fact becomes:

- **An EU-law argument:** the operation breaches the Habitats Directive and the conditions of the Natura 2000 network — a matter for the European Commission and the CJEU, and the very ground on which Romania is already being pursued.
- **A domestic legal argument:** the consent or plan is unlawful for want of a lawful assessment, and can be challenged in the administrative court.

- **An enforcement argument:** if the logging is also unauthorised under SUMAL, it is illegal on its face and a matter for the Forest Guard and, if corruption is involved, the DNA.
- **A political argument:** the state is failing its own protected forests and its European obligations, at cost to taxpayers who may pay the EU fines.
- **A media and public argument:** one of Europe's last old-growth forests, home to bears and wolves, is being destroyed — a story that moves the country, as Roşia Montană did.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank.

Match the Argument to the Audience

The administrative courts want the breach framed against the specific legal requirement — the EIA, the appropriate assessment, the permit conditions, the consultation rules — with the documents that prove it.

The European Commission wants a clear, documented breach of a specific EU directive by the Romanian state, with evidence and a demonstration that the domestic route has failed or is inadequate.

Journalists and the public want the human and natural story made vivid and true — the forest, the animals, the village, the corruption, the defiance — grounded in fact. Romania's civil society responds powerfully to exactly this.

Local and national officials want to know the legal and financial risk — the annulment, the EU infringement, the fines, the reputational cost — and the political cost of a mobilised public.

The Master Frame: "This Breaks Romania's Law and Europe's — and Communities Have Won Before"

Across every audience, the strongest frame in Romania joins the legal to the proven: this project breaks Romanian and, above all, European law; the European Commission and the courts can enforce that law against the state; and Romania is the country where a community, the courts, and a mass movement together stopped Europe's largest gold mine and won the arbitration that followed. Framing the fight this way is accurate; it is legally powerful, engaging the domestic and European tracks at once; and it carries the confidence of a country that knows these fights can be won. In Romania, insisting — with evidence — that the law has been broken, and that Europe is watching, is your strongest argument.

STEP 5: MEDIA STRATEGY

Media turns a local objection into a national cause and a cost the powerful must weigh — and in Romania, more than almost anywhere, it has proven it can. The Save Roşia Montană movement was, at its heart, a media and cultural phenomenon that filled the country's squares. Use media deliberately, in service of your goal, alongside the legal and organising work beneath it.

What Coverage Achieves

Coverage raises the political and reputational cost of a project; it pressures officials who dislike scrutiny; it reaches allies, experts, and lawyers; it warns investors that a project is contested; it draws the European and international eye; and it creates a public record. On Romania's biggest fights, sustained national coverage has been inseparable from the pressure that forced retreats — and Romania has a strong investigative-journalism sector (outlets such as Recorder and RISE Project) that covers exactly these stories.

Build the Story Around People, Place, and Proof

The most powerful Romanian stories combine a human and natural face with a documented fact: a village and its Roman-era heritage against a cyanide pit; one of Europe's last old-growth forests, home to bears and wolves, being logged illegally while Brussels sues the state; a defective assessment exposed. Lead with the people and the place; supply the proof; keep it accurate. Prepare a few clear, repeatable messages — what the project is, what it would destroy, what rule was broken, what you are asking — and keep every spokesperson on them.

Reach Every Layer

Local and regional media reach the affected community and its officials. **National outlets and Romania's strong**

investigative press carry the fight to the country and to decision-makers. **European and international media** matter enormously where EU law and a foreign investor are involved — coverage in Brussels and abroad reaches the Commission and the markets. **Social media and cultural channels** were central to Roşia Montană's reach, mobilising quickly and directly — strongest when anchored to verified facts and the slower legal and organising work.

Discipline and Safety

Be accurate always; one exaggeration handed to the other side can discredit a campaign, and in a defamation-prone environment can expose you, so verify before you publish and correct fast. Stay on message. Anticipate the counter-narrative — that opponents are against jobs, development, or the national interest, or are foreign-funded — and pre-empt it by grounding everything in law, EU obligations, heritage, water, and the public's own support. Protect the people who speak, especially in the forestry fights where intimidation is real: share the spokesperson role, and never let a photo opportunity pull participants into a dangerous place. Used with discipline, media is the amplifier that made Roşia Montană a national cause and can make every other lever — legal, European, political — hit harder.

Amplifying at Scale — Media Help for Hire

Beyond pitching reporters yourselves, you can pay to spread the story at scale — different from a single advert or one call to a local outlet, and available at any reach from local to global. **Public-relations and communications firms** run earned-media campaigns — placing op-eds, orchestrating coverage, staging the media push; for the cause side, public-interest firms such as Fenton, BerlinRosen and M+R work for advocacy groups and unions, not only corporations. **Press-release / newswire distribution services** send a release across a wide network of journalists and outlets — PR Newswire, Business Wire and GlobeNewswire at the global, higher-budget end; EIN Presswire, PRWeb and eReleases far cheaper and nonprofit-friendly, some with cause-specific wires. And **digital and social amplification** shops run targeted paid campaigns and creator partnerships. Two rules: amplify a *true* story from a *real* community — never manufacture fake outrage; and where public visibility is dangerous, favour trusted journalists and international allies over paid amplification.

EMAILS & LETTERS

Written communications are how you enter objections, create a record, and reach the bodies that can act — domestic and European. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Objection During the EIA Public Consultation

To: the county Environmental Protection Agency (APM [county]) **Subject:** Objection — [project], environmental procedure [ref]

As a person concerned by [project] at [location], I object during the public-consultation stage. My grounds, with evidence: (1) the environmental-impact assessment [omits / understates] [effect]; (2) [a Natura 2000 site / protected species] is affected and no adequate appropriate assessment was carried out, contrary to the Habitats Directive; (3) [the consultation / publicity] was defective. I request that the environmental agreement be REFUSED, or that [strict conditions and a redesign] be required, and that this objection be entered on the record. [Attachments.]

8B. Environmental-Information Request (Aarhus / Law 544/2001)

To: [APM / the competent authority] **Subject:** Request for environmental information — [project]

Under the right of access to environmental information (the Aarhus Convention and Law 544/2001), please provide: the impact study and any appropriate assessment; the environmental agreement/permit and its conditions; the monitoring data; the record of public participation; and the correspondence between [the authority] and [the developer]. Please respond within the statutory period; if access is refused, please state the legal basis, which I may challenge.

8C. Challenge in the Administrative Court

To: the competent administrative court (contencios administrativ), via counsel **Subject:** Action to annul [the environmental agreement / permit / plan] [ref]

As [affected persons / an environmental NGO with standing], we seek annulment of [the decision], on the grounds that [the EIA was inadequate / the appropriate assessment was missing or defective, contrary to the Habitats Directive / the consultation was unlawful / the plan was unlawfully adopted]. We request suspension of the decision pending judgment, and, where relevant, a reference to the Court of Justice of the European Union on [the EU-law question]. [Grounds and evidence attached.]

8D. Complaint to the European Commission

To: the European Commission (environmental complaints) **Subject:** Complaint — Romania's breach of EU environmental law at [location]

We submit that Romania is breaching [the EIA Directive / the Habitats and Birds Directives and the Natura 2000 obligations / the Water Framework Directive / the timber rules] in connection with [project/activity] at [location]. The facts, with evidence: [documented breach]. Domestic remedies [have failed / are inadequate], as shown by [attached]. We ask the Commission to investigate and, if warranted, open infringement proceedings against Romania.

8E. Report of Illegal Logging (Forest Guard / SUMAL)

To: the Forest Guard (Garda Forestieră) [region] **Subject:** Report of suspected illegal logging — [location]

We report logging at [location, coordinates] that appears unauthorised: [SUMAL / Inspectorul Pădurii checks show no valid authorisation / the operation is inside a Natura 2000 site]. Evidence: [photos, dates, transport details, imagery]. We request an urgent inspection and enforcement, and confirmation of the outcome. [We have also preserved this evidence with [NGO].]

8F. Referral to the Anti-Corruption Bodies (DNA / Prosecutors)

To: the National Anticorruption Directorate (DNA) / the competent prosecutor **Subject:** Referral — suspected corruption in [project/logging], [location]

We bring to your attention facts suggesting corruption in connection with [project/activity]: [documented, sourced facts only — approvals granted against the evidence, undisclosed interests, protection of illegal operations]. We attach the documentation and request an investigation. We confine this to what we can evidence and make no accusation beyond it.

8G. Letter to the Authority or Local Council

To: [the APM / the mayor / the county council] **Subject:** [Refuse / suspend / reconsider] [project] [ref]

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — an EU-law breach, a defective EIA, a Natura 2000 impact]. We ask you to [specific, achievable action]. [If true:] [#] residents and [#] organisations share this concern; the decision carries legal and financial risk, including EU infringement. We welcome a meeting and can share our full evidence.

8H. Email to a Reporter

To: [journalist] **Subject:** Story tip: [specific finding] — [authority/court] decides [date]

I follow your coverage of [beat]. We have something in [place] your readers should know, with a clear news hook: [documents / an inventory / SUMAL checks] show [quantified finding — e.g. "logging inside a Natura 2000 old-growth forest without a valid authorisation"], and [the authority / the European Commission / the court] is [deciding / acting] on [date]. It's new, specific, and time-sensitive. I can share the full file and connect you with [an expert]. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation; and route them, where you can, through or with an experienced environmental NGO that can strengthen the framing and, for the European complaint, carry it effectively. The reply — or the silence — becomes part of your record, and in Romania that record feeds the two arenas that matter most: the administrative courts and the European Commission.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With an afternoon a week you can still do real damage to a bad project. In rough order of impact for the effort — and, in the forests, with safety first:

1. Object during the EIA public consultation, before it closes. One page naming one or two concrete grounds — a defective assessment, a Natura 2000 impact — puts your objection on the record and preserves your position. This is the single highest-value quick move.

2. Check the legality — especially of logging. Use SUMAL and the Inspectorul Pădurii app to see whether a timber operation is authorised at all. An unauthorised cut is illegal on its face. Never confront the loggers; document from safety and report.

3. Request the environmental file. One environmental-information request (8B) forces out the study, the permit, and the correspondence — often revealing the defect that becomes your case.

4. Complain to the European Commission. If a specific EU rule is being broken — the EIA, Habitats, or Natura 2000 obligations — a complaint to Brussels (8D) engages a referee no local interest can capture. This is Romania's firmest lever, and it costs only the writing.

5. Report illegal logging to the Forest Guard, and corruption to the DNA. A documented report (8E, 8F) creates a record and can trigger enforcement.

6. Hand the fight to an environmental NGO. Agent Green, Greenpeace Romania, Alburnus Maior, Bankwatch, and their European partners have the lawyers, the methods, and the channel to Brussels — point them at your project and they may carry it.

7. Tell one reporter. Romania's investigative press covers these stories; a single accurate tip (8H) can raise the cost and reach a lawyer.

Do only the first four and you will have preserved the record, tested the legality, forced out the file, and put the case in front of Europe. Then come back and read the rest — and, in the forests, read the safety guidance with care.

WHEN THE SYSTEM IS TILTED

Romania's system is tilted in places — toward investment locally, and, in forestry, toward the interests that profit from the trees. You must understand the tilt precisely, so you neither waste effort on bodies that will not act nor miss the levers that reach past them.

Where the Tilt Shows

Local authorities want investment and revenue, and may push a plan change or a permit. Environmental agencies can be under-resourced or under pressure. In the forests the tilt is deepest: illegal logging has continued on a vast scale, protected — the evidence shows — by corruption reaching into the very institutions meant to stop it, and enforcement has too often failed. The environmental ministry itself has been criticised by the European Commission and by NGOs for that failure. Where the tilt is this deep, the domestic system alone cannot be relied on.

What Still Works — And It Is Strong

The decisive point about Romania is that even where the domestic system tilts, a powerful set of levers reaches past it — because Romania is bound by EU law and answerable to Europe.

EU environmental law is a ceiling the tilt cannot breach. The EIA, Habitats, Birds, and Water Framework Directives bind Romania regardless of local pressure, and a breach is enforceable by the European Commission and the CJEU — bodies no Romanian interest can capture. This is why the forest campaigners took their case to Brussels, and why infringement proceedings are under way.

The administrative courts apply EU law at home. A permit or plan that breaches the directives is vulnerable in a Romanian court, which can — and sometimes must — refer the question to the CJEU.

The anti-corruption bodies reach the capture itself. Where corruption protects a project, the DNA and prosecutors can, at times, remove that protection.

Mass mobilisation reshapes the politics. Roşia Montană proved that a mobilised public can overcome a tilt that legal action alone could not.

International scrutiny raises the cost. European NGOs, the international press, and the markets reach a state sensitive to its EU standing and its reputation.

The Honest Frame

So the honest frame for Romania is genuinely hopeful, with one hard exception. For an ordinary project, the EU-anchored system gives a community real power, and the courts, the permit process, and mobilisation can stop, quash, or force the redesign of a project — Roşia Montană is the proof. In the forests, where corruption and violence run deep, the fight is harder and more dangerous, and the domestic system falters — but even there the European lever, the anti-corruption bodies, and international pressure carry real weight, and safety must come first. Diagnose the tilt honestly, reach for the European referee the local interests cannot capture, and remember that this is the country that produced modern Europe's greatest community environmental victory.

A Word on Safety in the Forests

This guide's forestry passages carry a warning that must be said plainly, because it is a matter of life. Romania's illegal-logging economy has, at its violent edge, produced attacks and murders — forest rangers and activists killed for standing in its way. If your fight touches that world, safety is not one consideration among many; it comes first. Never go alone into a contested forest, and never confront loggers directly. Document from a distance — satellite imagery, Global Forest Watch, SUMAL and the Inspectorul Pădurii app do a great deal without anyone entering danger. Tell trusted others where you are and when you will return. Work through experienced organisations — Agent Green and its European partners have the methods, the equipment, and the networks, and can carry the most dangerous documentation so a local community need not stand exposed. Preserve your evidence securely and in more than one place, including abroad. Report threats to the police and to your NGO partners, and record them. And weigh, honestly and collectively, whether a given action is worth its risk — a photograph is not worth a life, and the external levers (the Commission, the courts, the anti-corruption bodies, the press) can carry the fight when the forest itself is too dangerous. Courage in these fights is real and honoured; recklessness helps no one. Fight in a way that lets you keep fighting.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But in Romania — and above all in forestry — genuine corruption is real and documented, and recognising it tells you which lever works and which is closed. Handle it carefully: the same facts that can sink a project can expose you to a defamation suit if you get them wrong.

Signs of Capture — and of Something Worse

Watch for the patterns the evidence on Romania's forests describes. Illegal logging that continues for years despite reports, inside protected sites, as if untouchable. Enforcement bodies that do not enforce. Approvals granted against the evidence. Timber that moves without valid authorisation and is never stopped. Officials with undisclosed interests. And, at the worst end, intimidation and violence against the rangers and activists who document it — the murder cases that have shadowed Romania's forestry crisis. This is capture that, in places, has passed into something closer to organised crime protected by corruption.

Why This Changes Your Strategy

Where corruption protects the harm, persuading the captured domestic body is futile, and confronting the violent interests directly is dangerous. The strategy shifts to the levers that reach past the capture, pursued with care for safety:

- **The European Commission and EU law.** The Commission is a referee the domestic capture cannot reach, and it is already acting on Romania's forests. Document the EU-law breach and take it to Brussels.
- **The anti-corruption bodies.** The DNA and prosecutors can, at times, investigate the corruption itself — provided you bring them evidence, not accusation.

- **Investigative journalism.** Romania's investigative outlets have exposed forestry corruption powerfully; a documented story can move what enforcement will not.
- **International NGOs and pressure.** European partners carry the case to the Commission and the markets, and bring protection and visibility.

Document It Carefully, Collectively, and Safely

If you are documenting corruption or illegal logging, do so with rigour, restraint, and — in the forests — real care for safety. Distinguish always between what you can prove and what you suspect; allege only what your evidence supports; and refer serious allegations through lawyers and the proper bodies (the DNA, the prosecutors, the European Commission), not through reckless public accusation, which invites a defamation suit and hands your opponents the story. Never go alone into a contested forest, tell others where you are, work with experienced NGOs, and preserve your evidence securely and with allies. In Romania, documented illegality — carried to the courts, the anti-corruption bodies, and above all the European Commission — is how the capture is reached, and doing the work safely and collectively is how defenders survive it.

Using the Anti-Corruption Bodies

Where genuine corruption underlies a project — an approval granted against the evidence, illegal logging protected for years, an official with an undisclosed interest — Romania's anti-corruption architecture is a real, if uneven, lever, and it is one the ordinary permit process cannot reach. The National Anticorruption Directorate (DNA) and the prosecutors can investigate, and at times have pursued high-level environmental and land corruption that no local body would touch. Two things make a referral count. The first is **evidence, not accusation**: bring documented, sourced facts — the records, the timeline, the conflict of interest — and confine the referral to what you can prove, because a well-evidenced file is acted on and a wild allegation is dismissed (and can expose you). The second is **partnership**: route serious referrals through lawyers and experienced NGOs, who know how to frame them and how to protect the people who bring them. A referral will not move fast, and it will not always succeed. But where corruption is the reason a project survives, removing that protection — by investigation, by exposure, by the anti-corruption bodies and the investigative press together — can undo what no environmental objection could. It is the lever aimed not at the project but at the capture that shields it.

INTEGRATION & TIMELINE

The steps in this guide are not a menu to pick from; they are strands to weave together over time, with the European lever running through everything. This section shows how they combine, and roughly when each comes into play.

How the Strands Reinforce Each Other

The power of a Romanian campaign comes from combining its strands and running the domestic and European tracks together. **Documentation** feeds everything — the court case, the European complaint, the enforcement report, the media. **The EU-law case** is the thread that runs through every argument and reaches past any domestic tilt. **The administrative courts** apply that law at home; **the European Commission** enforces it against the state. **Organisation and mobilisation** supply the political weight — and, as at Roşia Montană, can be decisive. **Media and NGOs** raise the cost and carry the case. **The enforcement and anti-corruption bodies** reach the illegality and the capture. Each strand strengthens the others: a documented Natura 2000 breach becomes a court challenge, a European complaint, a news story, and a mobilising cause at once. No single strand tends to win the hardest fights; woven together, and anchored in Europe, they have won Romania's greatest ones.

A Rough Timeline

Early (first weeks). Identify the project and where it stands; judge whether it is an ordinary fight or a dangerous forestry one, and plan safety accordingly. Begin documentation; request the environmental file; object during any open consultation. Connect to an environmental NGO and, through it, to European partners. Establish the EU-law angle — the EIA, the Natura 2000 status — early, because it is your firmest ground.

Building (weeks to months). Deepen the documentation and the legal analysis. File the administrative-court challenge and, in parallel, the complaint to the European Commission. Report any illegal logging and refer any corruption. Build the coalition and the media presence, and — if the fight can reach that scale — begin the public mobilisation. Pace yourself; this runs for months to years.

Sustained (months to years). Keep the two legal tracks, the organising, the media, and the European engagement

alive together, adapting as the situation shifts. Sustain the people through a long fight by sharing the load and holding to the knowledge that Romanian communities have won. In the forests, keep safety and international connection constant.

Throughout. Reassess honestly. If a lever works, press it; if the danger in a forestry fight rises beyond what any outcome justifies, protect people first, preserve the evidence with allies, and shift to the safer, external channels. Keep the record current and the European complaint live. And keep the EU lever central at every step: in Romania, the law of Europe, enforced by referees the local interests cannot capture, is the firmest ground a community stands on.

Two Fights, Two Lessons

Romania offers a community two case studies, and each teaches something. **Roşia Montană is the lesson of what is possible.** A remote Transylvanian town, facing a multinational's plan for Europe's largest cyanide gold mine, built a twenty-year fight that widened into a national movement, ran through the courts and the environmental-permit process, won a UNESCO World Heritage listing, and finally defeated a \$4.4 billion arbitration claim — because the state, pushed by a mobilised public and armed with a lawful environmental refusal, held firm. The lesson: documentation, litigation, the permit process, and mass mobilisation, sustained together over years, can beat almost anything, and a lawful environmental decision can be defended even against investor arbitration. **The Carpathian forests are the lesson of the limits — and of the European lever.** There, corruption and violence have overwhelmed the domestic system, and logging has continued despite years of reports. The lesson: where the domestic system is captured, the fight moves to Europe — the Commission, the directives, the CJEU — and to the anti-corruption bodies and international pressure, and safety becomes paramount. Hold both lessons. Most Romanian fights sit somewhere between them, and the same toolkit — anchored always in EU law — serves both.

FINAL ASSESSMENT

The Honest Bottom Line

Romania is, for a community facing a destructive project, one of the more hopeful countries in this guide — and, in its forests, one of the more sobering. Both truths are real, and which you face shapes your fight.

For an ordinary project, Romania's membership of the European Union gives a community genuinely powerful tools. **EU environmental law — the EIA, Habitats, Birds, and Water Framework Directives — binds the Romanian state and cannot be lawfully overridden**, and the **European Commission and the Court of Justice** exist to enforce it, as referees no local interest can capture. The **administrative courts** apply that law at home. And Romania has proved, more than almost any country, that **mass, disciplined public mobilisation can win**: the twenty-year fight for Roşia Montană stopped Europe's largest gold mine, secured a UNESCO World Heritage listing, and, in 2024, defeated the company's \$4.4 billion arbitration claim, with the tribunal finding Romania's environmental and heritage decisions to be lawful. A community here can win, and communities have.

In the forests, the picture is harder. Illegal logging continues on a vast scale, inside protected sites, entangled with corruption that has reached into the institutions meant to stop it, and defended at its worst with intimidation and violence that has cost rangers and activists their lives. Here the domestic system falters, the fight is more dangerous, and safety must come first — but even here the European lever is real and active, the anti-corruption bodies can reach the capture, and international pressure carries weight. The European Commission's infringement proceedings over Romania's forests are proof that Brussels reaches where Bucharest will not.

What Distinguishes the Campaigns That Win

The Romanian campaigns that succeed share a pattern. They anchor everything in EU law and take it to both the administrative courts and the European Commission — the two arenas that matter most. They document rigorously, because every referee acts on evidence. They organise broadly and, where they can, mobilise the public — the Roşia Montană lesson. They use the enforcement and anti-corruption bodies against illegality and capture. And in the forests they put safety first, never letting a defender stand alone. The campaigns that come to grief rely on a captured domestic body alone, neglect the European lever, or, at the dangerous end, expose their people.

A Closing Word

If you are reading this because a project threatens your forest, your river, your mountain, or your town, understand that in Romania you are not without recourse — and that you stand in the country that produced modern Europe's greatest community environmental victory. The method is clear: build the case on EU and Romanian law; take it to the

administrative courts and, decisively, to the European Commission; document everything; organise broadly and, if you can, mobilise; use the enforcement and anti-corruption bodies against illegality; and, in the forests, put safety first and never fight alone. It does not promise an easy win, and in the hardest forestry cases it asks you to accept real limits and real danger. But it is the method by which the people of Roşia Montană stopped a mine the whole weight of a multinational could not build, held firm through twenty years and a multi-billion-dollar arbitration, and won. Judge your campaign by real outcomes — a permit refused, a consent quashed, logging halted, a European finding, a project redesigned or abandoned — organise with discipline and in safety, and hold to the knowledge that here, more than almost anywhere, communities have proved it can be done.

Real Outcomes: What Winning Looks Like

"Winning" in Romania takes several forms, and it is worth naming them so you recognise one when it comes: an **environmental agreement refused or annulled**, sending the project back or ending it; a **consent quashed on Natura 2000 grounds** by an administrative court applying the Habitats Directive; **illegal logging halted and sanctioned** after SUMAL evidence and a Forest Guard inspection; a **European Commission finding or infringement action** against the state that forces a change no local body would make; a **corrupt approval investigated** and its protection removed; a **project delayed and redesigned** until it becomes uneconomic; a **heritage or protected-area listing** that takes a place off the table for good, as at Roşia Montană; or a **developer's arbitration claim defeated**, as Gabriel Resources' was, when the state acts lawfully. Communities in Romania have achieved each of these — almost always through the combination of documentation, the domestic courts, the European lever, organisation, and, at their most powerful, mass mobilisation, and rarely through any single step. Judge your campaign by these outcomes, and remember that the greatest of them, Roşia Montană, took twenty years and held.